

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shevani Patel	Team: Squad #3	CCRB Case #: 201506382	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 06/23/2015 3:30 AM	Location of Incident: [REDACTED]	Precinct: 40	18 Mo. SOL 12/23/2016	EO SOL 12/23/2016	
Date/Time CV Reported Sun, 08/02/2015 11:11 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 08/02/2015 11:11 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. DTS Lorraine Bowden	5641	917592	ESU CAN
2. DT2 Walter Szachacz	05005	909475	ESS 03
3. DTS Conway Reivers	06797	907132	ESS 03
4. DTS David Fekety	07644	932625	ESS 04
5. POM Benito Cruz	01486	956557	040 PCT
6. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brian Destefano	7166	954727	PBBX
2. SGT Sastri Drysdale	2556	941684	PBBX
3. DTS Michael Cacace	01990	929808	ESS 03
4. SSA Donald Abrams	00085	921890	E S U

Officer(s)	Allegation	Investigator Recommendation
A.DT2 Walter Szachacz	Force: Det. Walter Szachacz pointed his gun at § 87(2)(b) [REDACTED]	[REDACTED]
B.DTS Lorraine Bowden	Force: Det. Lorraine Bowden allowed a dog to attack § 87(2)(b) [REDACTED]	[REDACTED]
C.DT2 Walter Szachacz	Force: Det. Walter Szachacz used physical force against § 87(2)(b) [REDACTED]	[REDACTED]
D.DTS Conway Reivers	Force: Det. Conway Reivers used physical force against § 87(2)(b) [REDACTED]	[REDACTED]
E. An officer	Force: An officer used physical force against § 87(2)(b) [REDACTED]	[REDACTED]
F. An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b) [REDACTED]	[REDACTED]
G. An officer	Abuse: An officer threatened § 87(2)(b) [REDACTED] with the use of force.	[REDACTED]

Officer(s)	Allegation	Investigator Recommendation
H.POM Benito Cruz	Discourtesy: PO Benito Cruz spoke discourteously to § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		

Case Summary

On August 2, 2015, § 87(2)(b) filed this complaint with the CCRB over the call processing system on behalf of her husband, § 87(2)(b). § 87(2)(b) did not witness this incident.

On June 23, 2015, at approximately 3:30 a.m., § 87(2)(b) was sleeping underneath a car in a large junkyard and automobile repair lot at § 87(2)(b) in the Bronx. § 87(2)(b) had nowhere to sleep that night so he earlier jumped over the gate, did heroin and went underneath the car. Officers from the 40th Precinct and Patrol Borough Bronx responded to a call of a burglary and arrested two men outside of the lot. It was reported that two more individuals were inside. A search of the lot by these officers was negative. Sgt. Sastri Drysdale of Patrol Borough Bronx called for the Aviation Unit and ESU. Six officers from ESU searched the lot. When § 87(2)(b) noticed officers come into the lot, he crawled underneath another car where he did not think they would find him. While hiding, he fell asleep. § 87(2)(b) woke up to an officer announcing, “Police. Don’t move. Put your hands where I can see them.” Det. Walter Szachacz of ESU 3 pointed his firearm at § 87(2)(b) (**Allegation A**). A police K-9 handled by Det. Lorraine Bowden of the ESU Canine Unit allegedly bit § 87(2)(b) on both of his legs (**Allegation B**). On the other side of the car, Det. Szachacz and Det. Conway Reivers of ESU 3 grabbed § 87(2)(b)’s arms, pulled him out by his armpits and handcuffed him (**Allegations C and D**). An officer, who § 87(2)(b) could not see, allegedly kicked the left side of his face and stomped downwards in the same spot (**Allegation E**). An officer, who § 87(2)(b) could not see, allegedly said, “Anybody else here with you? Tell me or I’m going to kick your fucking teeth in if you don’t tell me right now” (**Allegation F and G**). § 87(2)(b) responded, telling the officer that he was there alone and only sleeping. The same officer allegedly replied, “I don’t want to hear that shit” (**Allegation F continued**). § 87(2)(b) was escorted out of the lot and placed into an ambulance. PO Benito Cruz of the 40th Precinct allegedly told him, “If you say anything at the hospital, I’ll make sure they don’t give you shit” (**Allegation H**). § 87(2)(g), § 87(4-b)

§ 87(2)(b) was charged with § 87(2)(a) 160.50
(Board Review 01).

There is no video associated with this case.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Mediation, Civil and Conviction Histories

- This case was unsuitable for mediation because of a civilian injury and an arrest.
- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of December 17, 2015 with regard to this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

■ [REDACTED]

Civilians and Officers CCRB Histories

- This is the first complaint filed by § 87(2)(b) [REDACTED] This is the first complaint involving § 87(2)(b) [REDACTED] (Board Review 03).
- Det. Bowden has been a member of the NYPD for 19 years and has had five prior CCRB cases, involving five allegations. An allegation of a refusal to provide her name and shield number was substantiated against her. She received command discipline A. She has had two prior CCRB allegations for instructing her police canine to use force. Both were exonerated.
- Det. Szachacz has been a member of the NYPD for 30 years and has had two prior CCRB cases, involving two allegations, none of which were substantiated.
- Det. Reivers has been a member of the NYPD for 21 years and has had two prior CCRB cases, involving eight allegations, none of which were substantiated.
- PO Cruz has been a member of the NYPD for one year. This is the first CCRB complaint made against him.
- Det. Fekety has been a member of the NYPD for 12 years and has had two prior CCRB cases, involving two allegations, none of which were substantiated.

Video Footage

- On August 28, 2015, § 87(2)(b) [REDACTED] an employee of § 87(2)(b) [REDACTED] (the lot where the incident took place), stated that there was no footage from the incident date.
- On September 3, 2015, § 87(2)(b) [REDACTED] an employee at the § 87(2)(b) [REDACTED] across the street from the incident location, stated that there were no cameras at the pound.
- The Aviation Unit's Flight Data Sheet noted that no cameras were used during the perpetrator search (Board Review 04).

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) [REDACTED] did not see and therefore could not describe the officer that kicked and stomped on his face or said to him, "Anybody else here with you? Tell me or I'm going to kick your fucking teeth in if you don't tell me right now," and, "I don't want to hear that shit." The investigation determined that the following six officers were present at the point in which these allegations occurred: Det. Walter Szachacz, Det. Conway Reivers and Det. Michael Cacace of ESU 3, Sgt. Donald Abrams of ESU, Det. David Fekety of ESU 4 and Det. Lorraine Bowden of ESU Canine. All of these officers were interviewed at the CCRB (Board Review 05 through 10). None of them admitted to the alleged force, discourteous statements, threat of force, or seeing or hearing any other officer commit the allegations. None of the other officers or civilian witnesses interviewed saw the apprehension or heard profanity.

§ 87(2)(g) [REDACTED]

Allegation A -Force: Det. Walter Szachacz pointed his gun at § 87(2)(b)

Allegation B -Force: Det. Lorraine Bowden allowed a dog to attack § 87(2)(b)

Allegation C -Force: Det. Walter Szachacz used physical force against § 87(2)(b)

Allegation D -Force: Det. Conway Reivers used physical force against § 87(2)(b)

§ 87(2)(b) provided a sworn statement on August 14, 2015 (Board Review 11). § 87(2)(b) jumped over the lot's gate, sustaining no injury, and hid behind a car. When he noticed officers inside, he crawled underneath a car and fell asleep chest down. He heard an officer say, "Police. Don't move. Put your hands where I can see them." A K-9 repeatedly bit all over both of his legs. § 87(2)(b) could not estimate the number of times. About ten officers grabbed § 87(2)(b) by his arms pulling in the opposite direction of the dog. They told him to get out from underneath the car. He put his arms out in front of his head. He was not moving any part of his body around. About four or five officers pulled § 87(2)(b) by his armpits out and handcuffed him. His nose and face scraped against the ground. The dog continued to bite his legs, breaking his skin. § 87(2)(b) was not able to estimate the number of times he was bit. § 87(2)(b) did not allege that an officer pointed a gun at him.

On October 5, 2015, Det. Szachacz was interviewed at the CCRB (Board Review 05). The ESU officers were requested to search the large and dimly lit commercial junkyard for a perpetrator search. He saw § 87(2)(b) underneath a car, lying parallel to the axle. He requested to see § 87(2)(b)'s hands and pointed his gun at him. § 87(2)(b) did not move. Det. Szachacz holstered his gun, and he and Det. Reivers knelt down and attempted to grab § 87(2)(b)'s wrists. § 87(2)(b) pulled his arms away from the officers while scooting further away. After 20 seconds, Det. Szachacz and Det. Reivers pulled the top portion of § 87(2)(b)'s body from out of the car and handcuffed him. From where he was standing, Det. Szachacz could not see if the K-9 made contact with § 87(2)(b). On October 5, 2015, Det. Reivers was interviewed at the CCRB (Board Review 06) and on October 29, 2015, Sgt. Abrams was interviewed at the CCRB (Board Review 07). They provided statements consistent with Det. Szachacz's account.

On October 5, 2015, Det. Bowden was interviewed at the CCRB (Board Review 08). Upon entry, Det. Bowden said, "This is the police. I have a trained dog. If you don't come out, I'm going to turn him loose." The K-9 was on a leash with a six foot lead. Det. Bowden and the K-9 went to the left of a truck, while the other officers went to the right. The K-9 went underneath. Det. Bowden slumped down and saw that the K-9 had the bottom of § 87(2)(b)'s foot. § 87(2)(b) kicked the K-9 with his other shoe. Det. Bowden told the K-9 to come back towards her, but because he was getting kicked, the K-9 latched onto the other leg; Det. Bowden explained that the K-9 is trained to latch when kicked. Det. Bowden pulled, but the K-9 latched again as he was kicked again. Det. Bowden could not see underneath the car. She said, "Come back towards me." The K-9 came off, but § 87(2)(b) continued to kick so the K-9 latched onto him again. Det. Bowden could not see what part of § 87(2)(b)'s body the K-9 held. Det. Bowden heard officers say that § 87(2)(b) was handcuffed. Det. Bowden gave the command, "Out," and the K-9 released his grip and came out. Det. Bowden did not see the officers pull § 87(2)(b) out from the other side of the car.

On November 6, 2015, Det. Cacace and Det. Fekety were interviewed at the CCRB (Board Review 09 and 10). They stated that while searching the lot, they heard commotion, but once they reached the other officers, § 87(2)(b) was in handcuffs. They did not observe the apprehension.

Sgt. Sastri Drysdale and PO Brian DeStefano of Patrol Borough Bronx and PO Benito Cruz of the 40th Precinct were interviewed at the CCRB (Board Review 12, 13 and 14) and § 87(2)(b) the security guard at the tow pound across the street and the 911 caller, and § 87(2)(b) a man who was arrested outside of the lot, provided telephone statements (Board Review 15 and 16). § 87(2)(b) another man arrested outside of the lot, did not respond to contact attempts made by the CCRB. From outside of the lot none of them could see § 87(2)(b)'s apprehension.

The ESU truck report, prepared by Det. Szachacz, notes that ESU, the K-9 Unit and the Aviation Unit were requested for a perpetrator search. § 87(2)(b) hid under a truck. He did not comply with several commands and when ESU moved in, § 87(2)(b) fought with officers and the K-9 was deployed, biting him several times in the leg and buttocks (Board Review 17). § 87(2)(b)'s command log entry lists his physical and mental condition as normal (Board Review 18). The pre-hospital care report prepared by FDNY lists § 87(2)(b)'s injury as a dog bite on his lower left leg (Privileged Documents). § 87(2)(b) was treated at § 87(2)(b). It was noted that he was intoxicated on K2 and heroin. He sustained a bite mark on his right lower extremities, multiple superficial abrasions to his lower extremities, a small abrasion over his right eyebrow and an abrasion at the tip of his nose. § 87(2)(b) sustained a facial and sphenoid fracture on his right side (In his CCRB statement, § 87(2)(b) stated that this was the result of being kicked—See Allegation F).

An officer is permitted to draw and point his firearm if he has a reasonable fear for his safety. Police Department v. Gliner (2000) (Board Review 19). Patrol Guide Procedure 212-93 authorizes an officer to tactically utilize a canine to assist in effecting an arrest (Board Review 20). Patrol Guide Procedure 203-11 authorizes officers to use the minimum amount of force necessary to effect an arrest (Board Review 21).

§ 87(2)(g)
[REDACTED]

Allegation E -Force: An officer used physical force against § 87(2)(b)

Allegation F -Discourtesy: An officer spoke discourteously to § 87(2)(b)

Allegation G –Abuse of Authority: An officer threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated that after he was handcuffed, an officer, who he could not see, kicked the left side of his face and stomped downwards in the same spot, causing him to sustain a facial fracture. An officer, who § 87(2)(b) could not see, allegedly said, “Anybody else here with you? Tell me or I’m going to kick your fucking teeth in if you don’t tell me right now.”

The pre-hospital care report prepared by FDNY lists § 87(2)(b) s injury as a dog bite. No facial injury is noted in the “head to neck” section. § 87(2)(b) was treated at § 87(2)(b) while in custody. It was noted that he was intoxicated on K2 and heroin. § 87(2)(b) reported a dog bite to medical personnel. In addition to the bite mark and abrasions to his lower extremities, above his right eyebrow and the tip of his nose, a CT scan revealed a facial and sphenoid fracture on his right side and an old closed fracture of his right side malar (cheek) bones. The records do not indicate the age of his facial and sphenoid fractures. There is no notation of abrasions, contusions or redness to § 87(2)(b) s right cheek area. § 87(2)(b) s command log entry lists his physical and mental condition as normal.

No officer interviewed reported injury in addition to the dog bite to § 87(2)(b) § 87(2)(g)

§ 87(2)(b) All of the officers denied the occurrence of these allegations. § 87(2)(g)

§ 87(2)(g)

Allegation H -Discourtesy: PO Benito Cruz spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that when he was in the ambulance, PO Cruz told him, “If you say anything at the hospital, I’ll make sure they don’t give you shit.” PO Cruz denied making that statement or using any profanity towards § 87(2)(b) He stated that he only asked § 87(2)(b) if he wanted to go to the hospital. No other civilian or officer corroborated this allegation. § 87(2)(g)

§ 87(4-b) § 87(2)(g)

Squad:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date